

SUMMARY OF INCIDENT

Investigator: P.O. KENNETH C. SYNO	Team # 3	Supervisor: CAPTAIN HULTON
Date of Report: 4/17/91	C.C.R.B. No. 9100802	Classification: ABUSE, DISCOURTESY
Date and Time of Incident: 3/30/91 1615	Date and Time Reported to C.C.R.B. 3/30/91 1955	
Location of Incident: § 87(2)(b)		Precinct 070

COMPLAINANT VICTIM ATTY	NAME § 87(2)(b)	STREET § 87(2)(b)	CITY/TOWNSHIP § 87(2)(b)	STATE § 87(2)(b)	ZIP § 87(2)(b)
	SAME AS ABOVE				
	NO Representing _____				

WITNESSES	NONE

MEMBERS OF THE SERVICE

RANK	NAME	SUB- JECT	WIT- NESS	SHIELD NO.	CMD.	TAX REG. NO.	DUTY STATUS ON OFF	ASSIGNMENT	RACE
P.O.	PAUL DIGIACOMO	☒	☐	1132	BSTF	886836	☒ ☐	PATROL	W
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ALLEGATIONS	SOURCE	APPENDIX ENCLOSURE NO.
(A) Complainant alleges subject Officer searched her apartment.	UF 245	1A
(B) Complainant alleges subject Officer used profanity towards her.	UF 245	1A
(C) Complainant alleges Subject officer had his gun removed.	UF 245	1A

COMMUNICATIONS TO BE ANSWERED:

☐ P.C. Brief	☐ Mayor's Office	☐ I.A.D. Review	☐ Other (specify) _____
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REPORT OF INVESTIGATION OF CIVIL COMPLAINT

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ADDITIONAL REMARKS/COMMENTS (If Necessary)

C.C.R.B. No.9100802

This complaint originated on 3/30/91. The complainant is alleging Subject Officers were abusive and Discourteous.

Complainant § 87(2)(b) is considered UNCOOPERATIVE in regards to this investigation for the following reasons:

Complainant was contacted on 4/1/91 and an appointment was made for 4/8/91 at 1300 Hrs. Complainant did not appear for appointment and no call was made to I/O regarding missed appointment. Complainant was again contacted on 4/8/91 and complainant stated the Police picked up her son § 87(2)(b) and she will call me back to reschedule by 4/12/91. On 4/17/91 I/O contacted Complainant again who stated she does not want to pursue this complaint at this time. Stated she is too busy trying to figure out why the cops arrested her son on phony rape charges. Complainant stated that if she decides to pursue this case in the future she will contact CCIB. Complainant also stated that her son was arrested because he was going to testify in another CCRB case.*

UF 245 indicates that three M/W Officers in plainclothes entered complainant's residence and started looking around the apartment for complainant's son § 87(2)(b). One Officer had his gun out and stated "Shut the fuck up, bitch" when complainant asked for a search warrant. Complainant stated although three Officers were there she is only complaining about one (ENCL. 4) § 87(2)(g)

A UF 49 from the Commanding Officer of Patrol Borough Brooklyn South Assistant Chief Gallagher regarding this incident has also been entered into this case. (SEE ENCL. 3-3A)

SUMMARY OF FINDINGS AND RECOMMENDATIONS

ALLEGATION	CLASSIFICATION					FINDINGS AND RECOMMENDATIONS
	F	A	D	E		
A		XX				INVESTIGATION CLOSED - COMPLAINANT UNCOOPERATIVE
B			XX			INVESTIGATION CLOSED - COMPLAINANT UNCOOPERATIVE
C		XX				INVESTIGATION CLOSED - COMPLAINANT UNCOOPERATIVE

TOTAL ENCLOSURES

6

INVESTIGATOR'S SIGNATURE

GO Syno

SUPERVISOR'S SIGNATURE

LT [Signature]